

On 5/14/2023 at approximately 22:17, I wanted to go to the local store to get some ice cream. Before it closed at.

When I pulled out of my driveway I immediately noticed a vehicle parked in a parking lot of a closed establishment a few blocks away with their headlights on. As I started driving towards the establishment, I saw the vehicle pulling out of the parking lot and started heading towards me, I recognized it to be a sheriff deputy as it left the parking lot.

At this time we are heading towards each other with our headlights on.

I knew that my vehicle had an expired registration, even though it has been legally registered with the state of Texas.

I didn't want to get a ticket.

So I decided to just go back home.

I immediately turned right on the next street to make the block to return to my house.

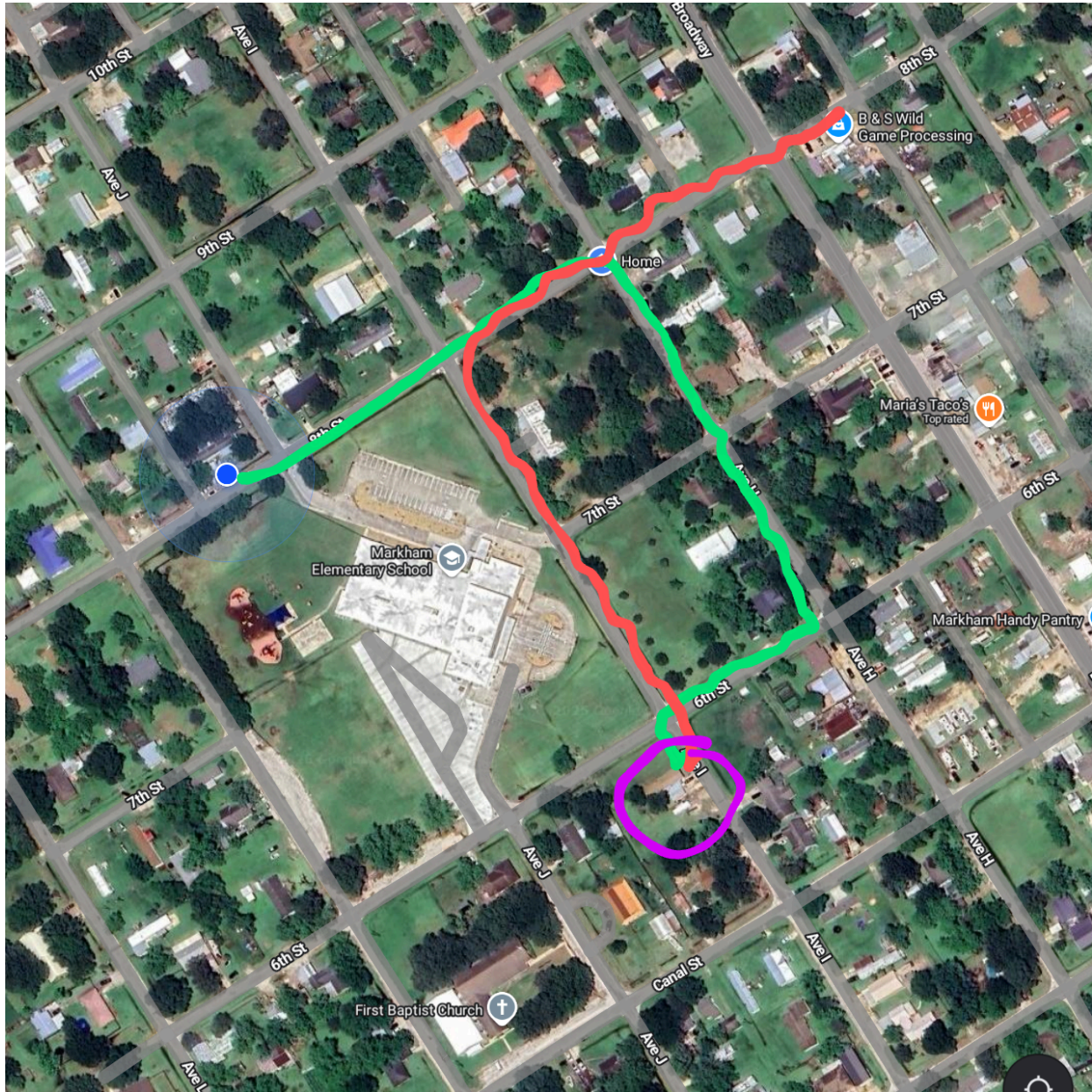
The deputy passed the street I turned on.

I made another right at the next intersection and as I was approaching the stop sign I was going to make another right to go back to my house.

A vehicle was approaching to my right.

I was stopped at the stop sign as the other vehicle slowly approached but this vehicle was too far over that there was really not enough room for me to make the turn safely.

When the vehicle comes to a stop, I realize it is the deputy that pulled out from the parking lot. Since he is basically blocking my right hand turn. I decided to pull into my friend's driveway, which is on the corner directly across the street. So I made a left hand turn and immediately turned right into my friend's driveway.



Blue Dot is my house

Green Line - is my way of travel

Red line - is the deputies way of travel

Purple circle is where the incident took place

I was literally in front of the deputy for no more than 3 to 4 seconds.

There was no way that the deputy could have seen my plates during this entire time that he and I were in the vicinity of each other. Or would he have been able to run the plates and get a response back in the time frame.

So either he already knows that my registration has expired, or he's psychic.

Before I could completely pull into the driveway. The deputy turned on his overhead lights and pulled up behind me. According to his incident report he initiated his lights at 22:20.

I barely got my vehicle stopped, put in Park and was rolling down my window.

The deputy, later identified as Raymond Gonzales, had already exited his vehicle and was shouting something and before I could completely roll down my window, he yelled at me to "get out of the car".

I asked him why, and he kept screaming at me to "get out of the car" and then he grabbed my door handle, opened my door and started to yank me out of the car saying that I was under arrest.

Side note: I can prove beyond a reasonable doubt that the deputy opened the door, because the door handle on the driver's inside is broken and the door can only be opened from the outside.

I wasn't resisting but I was shocked and not expecting to be yanked from my vehicle. The vehicle was extremely low to the ground and he was yanking on me.

When I tried to find out what was going on. Another unidentified officer was suddenly there and as the deputies were trying to cuff me and roughly searching me.

They pushed me forcefully up against the convertible top to my car. I am trying to pull up and not damage the top, I'm trying to tell him that the top is going to be damaged and that I am not resisting.

He Yanks me back and is trying to get my arms behind my back and I am trying to tell him that he's hurting my shoulder but he's clearly in an adrenaline haze, so I try to relax as much as I can so that they stop hurting me and get the cuffs on which they finally do.

Then deputy Gonzales said that I was being arrested, as I was being handcuffed, I asked why and he said for expired registration. According to his incident report he advised custody at 22:22.

By this time a 3rd female deputy is now on scene. Then deputy Gonzales handed me off to the 1st deputy that showed up and told him to take me in.

I was loaded into this deputy's vehicle and as we were pulling off I looked back and noticed that deputy Gonzales and the other deputy had started looking in my vehicle with their flashlights.

I saw that my friend Tina Phillips had come outside to see what was going on in her driveway.

I commented to the deputy taking me to jail, that I did not give consent for a search. He said it was for officer safety.

I argued back, safety for what. I'm more worried about my safety, cause if it's drugs y'all want, your not going to find them.

I warned that if they "found" any drugs in that car then they were planted.

He looked back at me through the rear view mirror and said, that's why we have these. Patting a box on the front of his chest.

I said well you better hope they are on, because there's no drugs in that car.

I was looking back at him through the same mirror.

I was booked into Matagorda County jail at 22:39 on May 14, 2023, where I sat in holding all night and most of the next day, until finally the judge from Pct 1 Judge Jason Sanders.

I was pulled out of holding, brought up to the picket window, judge Sanders said that he was going to give me "time served" for an expired registration charge, and told me that I would be released shortly.

I signed some forms and that was it. Automatically charged and found guilty and given time served. No fuss no muss. No explanation that there's any other options.

I was returned back to holding and waited for a few more hours..

When they finally released me, at 16:23 on May 15, 2023, 18 hours and 1 minute later, the only piece of paper I got was the property sheet of my clothes and personal effects from booking. I honestly don't recall if I received any other paperwork.

Since I didn't have my phone, it was left in my vehicle, I had to walk to a friend's house several miles away from the jail, thank goodness they were home. And they brought me back to my house. After being dropped off at my house, I could see that my vehicle was not in my friend's driveway.

I can see her house from my driveway.

I walked over to my friend Tina's house where my vehicle was left.

Tina proceeded to tell me that she came outside just about the time that I was being loaded into the back of a patrol vehicle. She said she just stood on her porch, she said that as soon as I was gone, there were 2 deputies going through the vehicle very purposefully like they were looking for something.

She said she just watched until she saw that a tow truck pulled up. That's when she slowly approached the male deputy which would have been deputy Gonzales and advised him that if the vehicle was going to be towed because of where the vehicle was, that it would not be necessary because she knew the owner and the vehicle could stay there.

She said that the deputy turned to her and said "that was not an option" and told her to go back inside or go to jail for interference.

Tina said she returned to her porch and she looked back as the deputy was watching her, so she went inside and shut the door.

The only thing I was charged with was expired registration, violation 502.407 according to the booking sheet nothing else, I was not given a citation, I was given time served.

I was never informed that my vehicle was towed or where it was taken. And no one provided Tina any information regarding the tow.

This is the only vehicle that my family owns that is drivable so I had to wait until the next day to borrow my mom's car and go back to the sheriff's office to find out where my car is.

The front desk clerk advised that the vehicle is at Jackson Towing Services

So I go to the office of Jackson Towing and ask to see how much it is going to cost me to get my vehicle out.

On 5//16 I was advised that the bill was already at 563.63 but it might as well be 400 million, I don't have the money, I asked if there is a payment plan or anything that can help me because this is my only transportation. The front desk clerk said no, so I left.

So now I am stuck at home, no vehicle, no way to earn money. If I need to go to the store or to town I have to catch a ride with a neighbor or friend and occasionally I could borrow my mom's car.

I had purchased a truck that needed a transmission, that I had planned on fixing for myself to have 2 vehicles. I had to sell the truck because that was the only thing I had that would give me enough money to get the car out. It took me about 3 weeks to sell the truck and when I went back to the towing company the charge to get the vehicle out was now a little over 900.00.

I still didn't have enough, but I laid out 500.00 cash on the counter and asked if they would take the cash and the front desk clerk went to the back, came back, took the 500.00 off the counter and started the paperwork to release the vehicle. And I finally got the car back on 6/7/2023.

In the meantime my wife Virginia Thompson, the legal owner of the vehicle, requested a tow hearing with the justice of the peace Pct 4. That they scheduled for 6/22/2023

On 5/28/2023 I Asked for all the information concerning the arrest from the sheriff department through a open records request.

Here's the email sent to the records clerk at the sheriff office.



open records request

1 message

Donnie Thompson <donniethompson430@gmail.com>

Sun, May 28, 2023 at 2:54 AM

To: records@co.matagorda.tx.us

Bcc: ginnyleethompson430@gmail.com

Attn: Records Officer

My name is Donald L. Thompson, Jr. DOB 02/28/1968

I was arrested on 5/14/2023 at approximately the location:
500 Blk of Ave I in Markham, at approximately 11:00 pm or 2300 hrs

As a result my vehicle was impounded.

I have not been provided with any documentation concerning this situation, and am requesting the following:

1. ALL Reports and Documents that are required by MCSO pursuant to arrest and vehicle impoundment.
2. All Recorded Communications concerning all aspects of this incident, being that of any Dispatch Radio Communication along with any and all radio traffic that was captured on the dispatch recordings. including car-to-car communication between officers that arrived on location which where 3.

Persuant to:

Sec. 1701.661. RELEASE OF INFORMATION RECORDED BY BODY-WORN CAMERA.

(a) A member of the public is required to provide the following information when submitting a written request to a law enforcement agency for information recorded by a body-worn camera:

- (1) the date and approximate time of the recording;
- (2) the specific location where the recording occurred; and
- (3) the name of one or more persons known to be a subject of the recording

I also requesting:

3. Body Cam Footage and in Car Dash Cam Footage of all officers at the scene of this incident and there were 3. Even if they did not contribute to any of the report writing, they all participated in the arrest and subsequently search of the vehicle. so all of the footage is required.

1. 5/14/2023 11:00 pm or 2300 hrs approximately
2. 500 Blk of Ave I Markham or per impound lot 507 Ave I. Markham
3. Donald L. Thompson Jr. DOB 02/28/1968- arrested individual

I am also requesting a copy of the Matagorda County Sheriff Office official Ordinance or Policy on the procedures for towing vehicles in reference to the law that has been approved by the commissioners Court.

All requested information may be electronically returned as long as the information is in a universal format that would allow for viewing from any operating system.

Thank you in advance for your time, and if any of the requested information is not received in a timely manner within the 10-day window an Attorney General Opinion will be the only acceptable reason for not providing the information that I have requested.

Also, note that all information that is being requested specifically is pertaining to myself so the information that I seek is not to be redacted in any way.

--
Donnie



Sender notified by
Mailtrack



I received a email message back on 6/15/2023:



Save as PDF

Copies: 1

Paper size: Letter



RECORDS REQUEST

1 message

<records@co.matagorda.tx.us>
To: donniethompson430@gmail.com <donniethompson430@gmail.com>

Thu, Jun 15, 2023 at 8:34 AM

Good Morning,

Second Notification (First Notification was sent on June 7th)

In reference to your records request I have no problem not redacting your information out of the reports but they will need to be picked up in person to verify your identity.

Additionally there is a charge to receive body cam footage:
It is \$10 dollars for each recording and a 1 dollar for every minute
3 officers and one dashcam video=\$40
Minutes per video (14.11+14.50+14.11+21.14 =64.26)

Bringing your total to 104.26 for the body cam recordings. I will need to receive payment before I can release the videos to you.

If you have any questions please contact me directly.

Thank you,
Michaela Riley
Records/ID Clerk
Matagorda County Sheriff's Office

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I replied on 6/16



Save as PDF

Copies: 1

Paper size: Letter



RECORDS REQUEST

1 message

Donnie Thompson <donnaithompson430@gmail.com>

To: records@co.matagorda.tx.us

Fri, Jun 16, 2023 at 5:15 PM

ok thank you, i will be in Monday to male arrangements to pick up the information.



Sender notified by
Mailtrack

[Quoted text hidden]

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Donnie



I went to the sheriff's office to pick up the records that states are ready. Provided all identification.

I then asked about getting the fee waived due to my indigency status for the hearing. Which was already approved by the JP4 Judge Finlay..

She said she didn't know, but I could go to the county attorney office and get something from them.

I left and went to the Jennifer Chau county attorney's office and asked to speak to her. The front desk clerk was speaking with an unidentified sheriff deputy when I came up to the window. She asked me what it was in reference to, I explained that I was trying to see if the CA would give me a fee waiver for the records that I needed from the SO for a future hearing.

She asked me about the hearing and I told her, it was a tow hearing, and I needed to get the evidence from the sheriff office but I didn't have the \$104.00 they were wanting to charge. I explained that my indigency was granted by the judge, but the sheriff office clerk said I needed something from the county attorney.

The clerk said, oh yeah the county attorney is scheduled to attend that hearing, then she said that the CA wouldn't give me a waiver because that is not something that office does.

I was like. Well what am I supposed to do if I can't afford the information that I need to defend myself in court. The clerk said, "I don't know, that's not our problem".

Feeling defeated, I reluctantly left and went to a friend's house, borrowed the money and returned to the sheriff's department. I handed the records clerk \$105.00 and she took the money and then said that it would be a few hours before she could get the information together.

I told her that she should have already had it done, since I had advised that I would be here to pick up the records. But I told her that I would wait for them and will be back..

She said to give her 2 hours. I left and came back 2 hours later.

The clerk came back out and handed me all my money back and said that she couldn't get the recordings done because of some technical issues that the system they used wasn't working properly. She also handed me a few pieces of paper and said she would call me when she got the recording done.

All I got was the call sheet, the incident report and an inventory page. That didn't have any itemized list of property in the vehicle. Just listed the vehicle and the towing company. I told her that the recording was important to my defense and that I really need it

Long story short, after several phone calls and even going to the judges clerk and asking them for help. I wasn't exactly denied the body cam footage per se because they said that I could have it, but it had not actually been released by the time the hearing came around.

At the hearing judge Mark Finlay advised that everyone was here and ready, the CA was participating by way of a zoom meeting on a computer on the desk of the judge facing the court. Deputy Gonzales and a representative of the towing company were present. Constable David Miles was the bailiff.

And one of the judges front desk clerks was present sitting off to the side with a file in front of her.

Before the hearing actually began, my wife asked the judge if she could make an oral statement which he granted.

She then proceeded to explain that she nor I had been able to secure the body cam footage and the dash cam footage even though we had been very diligently and persistent in trying to get the information prior to the hearing, by going to the county attorney office and even asking his own clerks to assist and have been unsuccessful.

She then asked the court to compel the sheriff department to turn over the body cam footage so it could be introduced into evidence and to reschedule the hearing until the evidence can be received and admitted into evidence to verify the account of the situation that occurred.

The judge, Pct 4 Judge Mark Finlay, overruled and proceeded with the hearing.

deputy Gonzales was the only one there from the 3 deputies on site. When my wife started her line of questioning, she first asked him if he had taken his oath of office, he said that he had. She advised him that he was under oath and he agreed.

She asked him how familiar he was with the Texas Transportation Code and how the code is to be applied in all circumstances.

He said he was very familiar, because he reads the code at a minimum of once a week.

She felt and knew right then this officer was going to lie completely, because as a former police officer herself, she knew that was not a true statement.

As she questioned the deputy about the situation he was lying through his teeth, she reminded the deputy that he was under oath and that if it is found that he is being untruthful that it is a crime, trying to get him and the judge to be aware that he's not telling the truth.

He stated that he knew, and judge Finlay didn't say anything either, so she continued on.

Upon further questions she asked him where the vehicle was towed from. The deputy said "from the middle of the road". She had him confirm the vehicle was in the middle of the road. He said yes.

She then started to ask him if that was the policy of the sheriff's office, to address a vehicle, on a normal traffic stop, that has stopped in the middle of the road, and asked him why he would get out of his vehicle and approach the driver, and why for officer safety he didn't instruct the driver to pull off the road using the outside speaker.

At this time the county attorney objected saying that this hearing was concerning a towed vehicle not about policy and the deputy was not an expert to be able to answer this line of questioning.

The judge agreed and asked Virginia if she had any more questions. She didn't know what else to ask seeing the deputy was not being truthful anyway.

So she asked for the representative sent from the towing company to take the stand.

When the towing company representative took the stand she asked him only 1 question. Where was the vehicle located when you arrived to pick up the vehicle? The representative said that he was NOT the one that picked up the vehicle, he was the owner of the company Buster Jackson. When she asked if the driver who did pick up the vehicle was present, Mr. Jackson said he was working.

So there was nothing that can be provided to verify the vehicle was where the officer claimed.

When Virginia said, judge how can I verify that the vehicle is where the deputy is claiming it to have been..

The judge said ok, ok, I have heard enough, he said, you asked me for some leeway and I believe I have been more than generous, but I am ready to rule.

He then turned his attention to me and addressed me from the bench and asked me if I had operated the vehicle with an expired registration, I said yes and so he proceeded to lecture me about... well... you broke the law.. Your vehicle was operated with an expired registration and the officer has the "discretion to arrest and tow". And since You broke the law,

"I find the tow was within the discretion of the officer".

Case closed

No appeal available according to JP4 Judge

Now this entire situation was based on the facts that we thought where legal, since we were granted a hearing concerning the lawful towing of the vehicle, and even though we lost, when judge Finlay stated that the officer has the discretion to arrest and tow, that it was done legally. So we sucked it up and moved on with life.

Update 2025

Now I find out on April 20, 2025 almost 2 years later, while doing research on an entirely different situation with relatively the same circumstances.

Most courts have used the statute in traffic court for tickets under the Rules of the Road section that deals with violations of the Transportation Code. And according to the Texas Transportation Code a deputy must provide a promise to appear or as most people call it a ticket, in a class c fine only circumstances according to the 543.003 of the Texas Transportation Code.

Unless certain exceptions are present. Like intoxication or reckless driving or something else that is causing a dangerous situation to the people of Texas. Which none of this was present.

And if I refused to sign the promise to appear, aka ticket, or asked to see the magistrate, then and only then could I be taken into physical custody.

Instead the deputy (Raymond Gonzales) immediately and without any reason fully arrested me and impounded my vehicle parked on private property. Even after (Tina Phillips) the property owner where the vehicle was parked advised the office that the vehicle was allowed to remain where it was.

So if the officer was actually familiar with the code like he said, he would know he was not allowed to take me into full custody until I had refused to sign a citation or requested to see a magistrate, which was not the case. So he should have issued me a notice to appear. Aka ticket

And then to realize that

Judge Sanders who gave me time served, should have never done that, because it automatically charged me with a crime without the opportunity to fix it, which is one of the remedies available for such a situation as this.

The county attorney, (Jennifer Chau) who has also taken an oath to uphold the Constitution, should have also known that the full arrest was not legal, since she must know the legality of the charges to make sure that everything is legal going forward with any involvement of hearing or court proceedings. Instead she not only is participating, but she is also knowingly and intentionally keeping evidence that would be a determining factor in the outcome of the hearing.

The justice of the peace, (Mark Finlay) is also knowingly and intentionally keeping evidence that would be a determining factor to make a lawfully educated decision and has allowed a deputy to lie on his oath, not requiring the towing company to send the driver that retrieved the vehicle to verify the location of the vehicle. And completely made his ruling based on absolutely no actual evidence, other than, the deputy said.....

So now that I find out that from jump, this whole thing was not even legal, that fact alone changed how this situation was handled and why I didn't know

They were making it seem as though the procedures were followed according to the law. That I got my day in court and I lost.

Now I am trying to find a way to get this matter and the officials that were involved investigated and punished for illegal actions that they have taken.

No one is above the law. Not me, nor them. If as a person who believes that they can break the law with no responsibility to the very people who they have sworn an oath to protect. Then tyranny and corruption is all we have.

If the government can use illegal actions on people without accountability then how can that be justice on any level on any day.

Here's some things that I want to include in this

Rebuttal to Article 14.01(b) Justification for Arrest

Although Article 14.01(b) of the Texas Code of Criminal Procedure allows a peace officer to arrest a person without a warrant for any offense committed in their presence, this authority is limited by procedural, constitutional, and statutory safeguards.

For Class C misdemeanors like expired registration, Texas law directs officers to release the individual with a citation, not make a custodial arrest. Specifically:

Article 14.06(b), C.C.P. allows citation and release in lieu of arrest.

..... HOWEVER

Under subtitle C of chapter 7 Rules of the Road. Which is what most citations are written under this section is for SUBTITLE C ONLY offenses

Texas Transportation Code §§ 543.003–543.005 require the officer to issue a written promise to appear, unless certain exceptions apply (none of which applied here).

The offense that I have been charged with is NOT in Subtitle C so technically this part of the statute is NOT the governing statute of law.

Subtitle A is where the expired registration 502.407 charge lives. Which has a remedial function before Prosecution.

Knowing this now, is how and I know that deputy Gonzales never reviewed this particular offense., as he testified that he reads the transportation code weekly during his testimony at the tow hearing.

So this is actually then, taking this scenario out of complete officer discretion, that everything has been based on, into a full review of probable cause, and if it was developed before lights on. Which has never been reviewed from anyone that has been involved with this case, at any point that I am aware of.

As this case has slowly been moving forward in the federal court, more and more clarity about the process and circumstances have been revealed and need to be reviewed legally.

Because In this case:

The entire time between stop and jail booking was only 19 minutes, including transportation across approximately 10 miles of roadway from Markham to Bay City.

Plaintiff was never offered an opportunity to sign a citation or notice to appear. By the officer, or judge Sanders and nobody ever advised that there was a opportunity to fix the offense before being prosecuted.

There was no refusal to appear, no intoxication, no outstanding warrants, and the vehicle was on private property at the time of the stop.

This conduct suggests that the arrest was not performed under legitimate discretionary authority, but rather:

As an instrument of intimidation,

For the purpose of conducting an unlawful search, and

To justify the seizure and impoundment of Plaintiff's vehicle.

Also any reliance on Article 14.01(b) to justify the arrest is not a valid defense and does not insulate Defendants from liability under 42 U.S.C. § 1983 for unlawful seizure, due process violations, and abuse of authority. Because the officer has to have a reasonable suspicion concerning the vehicle and the crime that is being possibly observed.

With the interaction of the vehicles from the above diagram showing the travel paths and locations of the vehicles, and the time of day. There's no suspicious activity that would indicate that the vehicle was committing a offense that needs investigation.

There's no speeding,
No quick turns
No evading

Those charges if they were present would have made this case easily prosecuted. But this wasn't how this was presented. So with the limited interactions, deputy Gonzales never had any legal articulated factual evidence that he suspected a criminal offense was happening, under the Article 14.01(b) section of the Code of Criminal Procedures. Much less investigated and developed probable cause to justify the custodial arrest that is at a minimum requirement to be documented and verified before the government can legally interfere with your life.

Also noted

Additional Constitutional Violations

Excessive Force – Fourth Amendment

The arresting officer forcibly removed Plaintiff from his vehicle without warning, used physical restraint despite no threat or resistance, and ignored verbal indications of potential injury. This conduct constitutes excessive force during a seizure, in violation of clearly established Fourth Amendment protections.

Cruel and Unusual Punishment – Eighth Amendment

Plaintiff was sentenced to “time served” for a non-jailable Class C misdemeanor, without hearing or trial, and held for 18 hours in jail. The punishment was grossly disproportionate to the alleged offense, violating Eighth Amendment standards. Especially since the legislative body provides a remedial function and a total fine of court fee of no more than \$20.00

Excessive Fines – Eighth Amendment

Plaintiff’s vehicle was towed without legal justification and held for nearly a month, accumulating over \$900 in towing and storage fees. These fines were imposed without prior notice or opportunity to be heard, constituting a disproportionate financial penalty in violation of the Eighth Amendment and related due process principles.

This is the only evidence that has been provided. From the sheriff’s office.
Here's the evidence of the incident

Here's the document for the officer report

Incident # 2023-0477

GONZALES, R

ASSIGNMENT: On Sunday, May 14th, 2023 at approximately 2220 hours, I, Deputy Raymond Gonzales, #4844, a licensed Peace Officer in the State of Texas, employed by the Matagorda County Sheriff Office, assigned to the Patrol Division on night shift as a Patrol Deputy observed a White in color, 2004, Chrysler, Sebring, 2-Door, bearing TXLP# PTZ7792 to be traveling south bound on Avenue I, Markham, Matagorda County, Texas 77456 with an Expired Registration from February 2022.

OFFICERS ON SCENE: Deputy J. Wamget #4842

SUMMARY: At approximately 2220 hours, I initiated my overhead red and blue lights on my marked patrol unit #220 to conduct a traffic stop on said pickup and gained compliance at 507 Avenue I, Markham, Matagorda County, Texas 77456. I approached about the driver's side area, announced myself as a Peace Officer, and gave the reason for the traffic stop to the driver/sole occupant, identified as Donald Lynn Thompson (W/M DOB 02/28/1966). While speaking to Thompson, Thompson began to get verbally aggressive, I advised Thompson to exit said vehicle and place his hands on said vehicle. I patted down Thompson for weapons in which none were found.

I placed Thompson into custody at 2222 hours for Expired Registration Class c.

Jackson Services made pick up of said vehicle at approximately 2300 hours.

Thompson was transported to the Matagorda County Sheriff's Jail and booked in without further incident.

Audio and video are available for this call.

DISPOSITION: Cleared by arrest.

Deputy R. Gonzales #4844

Unit 220

Officer information for the court

EXPIRED REGISTRATION

CAUSE# _____

STATE OF TEXAS

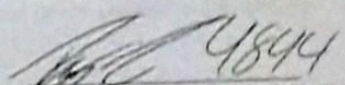
VS.

DONALD LYNN THOMPSON JR.

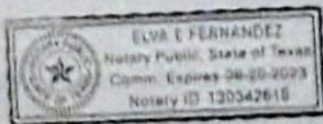
IN THE NAME AND BY THE AUTHORITY OF THE STATE OF TEXAS

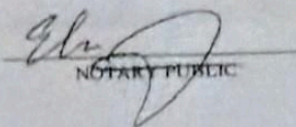
I, DEPUTY RAYMOND GONZALES #4844, THE UNDERSIGNED AFFIANT, DO SOLEMNLY SWEAR THAT I HAVE GOOD REASON TO BELIEVE AND I CHARGE THAT HERETOFORE, AND BEFORE THE FILING AND MAKING OF THIS COMPLAINT, ON OR ABOUT THE 14TH DAY OF MAY 2023, IN THE COUNTY OF MATAGORDA, AND THE STATE OF TEXAS, DONALD LYNN THOMPSON JR. DEFENDANT, DID THEN AND THERE OPERATE A MOTOR VEHICLE DESCRIBED AS A 2004, WHITE IN COLOR, CHRYSLER, 2 DOOR SEDAN, BEARING TXLP PTZ7792, ON A PUBLIC STREET THEREIN, TO-WIT: 307 AVENUE I, SITUATED WITHIN THE TERRITORIAL LIMITS OF MARKHAM, MATAGORDA COUNTY, TEXAS, AND THE SAID DEFENDANT DID THEN AND THERE OPERATE SAID MOTOR VEHICLE WITH AN EXPIRED REGISTRATION AS OF FEBRUARY 2022.

AGAINST THE PEACE AND DIGNITY OF THE STATE


AFFIANT - DEPUTY R. GONZALES #4844

SWORN AND SUBSCRIBED BEFORE ME BY AFFIANT DEPUTY RAYMOND GONZALES THIS 14TH DAY OF MAY, 2023.




NOTARY PUBLIC

I, _____, Justice of the Peace, Pct. _____, Matagorda, County, Texas,
having read the above affidavit find that there is sufficient probable cause for said offense.

Booking sheet

ARREST DATE: 5-14-73 ARREST TIME: 2200 BOOKING TIME: 2239 ARREST LOCATION: 507 Ave I

HOW ARRESTED On View CONDITION WHEN ARRESTED Sober

LOCATION OF WRECKER SERVICE Jackson Service YR. 2004 MAKE Chrysler MODEL Adt LP. PTZ 7792

LAST NAME: Thompson FIRST NAME: Donald MIDDLE: Lynd RACE: W SEX: M
DOB: 2-28-48 AGE: 55 HEIGHT: 5'9 WEIGHT: 185 HAIR: Bro EYE: Bro SKIN: lt BUILD: Med
ADDRESS: 199 8th St CITY: Madison STATE: TX ZIP: 77456
PHONE: _____ PLACE OF BIRTH: Bay City STATE: TX COUNTRY: USA
EMPLOYER: unemployed OCCUPATION: _____ MARITAL STATUS: Mar'd
STATE ID #: _____ EXP: _____) (STATE DL #: 2388093 EXP: 9/209 SOC #: 554-31-8743

EMERGENCY CONTACT

NAME Tom Nester RELATION Mom ADDRESS 9th & Ave H
CITY Northem STATE TX ZIP 77456 PH # 779-843-5954 PH #2 _____
WARRANT OFFENSE CLASS VICTIM AGE PC/TC CODE DPS CHARGE CODE JUDGE / COLLECT BOND / FINE

Ergebnis C

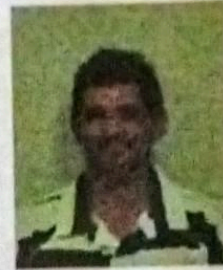
[illegible]

NAME: ACCEPTING OFFICER Ed Barton ID# BAO# JACKET#
 ADDRESS: OFFICE 1 Center EMPLOYEE# 4844 AGENCY: MSD
 IN JACKET PRINT: FOR NAME & NUMBER LEGIBLY

MATAGORDA COUNTY SHERIFF

Arrest Report

Arrest # 0000000928



ARRESTEE DETAILS

Name	DONALD LYNN THOMPSON				
Address	194 8TH ST. MARKHAM TEXAS 77456				
Phone	979-318-8138	SSN	454-31-8743	DL	TX 23880193
Race	W	Sex	M	Age	57
DOB	02/28/1966				
Height	5'09"	Weight	195	Hair	BRO
Eyes	BRO	JRN	SID 03647076		
FBI	601531KA4	MID			
Resident	Y	Inc.#			
Place of Birth	BAY CITY TX				

ARREST INFORMATION

Arrest Date-Time	5/14/2023 - 22:22	Hold Reason			
Arrest Location	507 AVE I MARKHAM TX 77456	Release To	MCSO JAIL		
Arrest Agency		Resist Arrest	N	Arrested Before	N
Arrest Type	ON VIEW	Arrest Officer	R. GONZALES		
Arrest Disp		Miranda Officer			
Supervisor	R. BECERRA				
Arrest Condition	SOBER				
Armed With	UNARMED				

ARREST CHARGES

Violation	EXPIRED REGISTRATION (TRF)				
Statute	TRC 502.407				
Judgement					
Judge		Court			
Disp Date		Court Date	Bond Amt	\$0.00	
Warrant #		Citation #	Incident #	2023-0477	
Disposition		Bond Type			

CONTACT DETAILS

Contact Name	NESTER, PAM				
Address	9TH & AVE H, MARKHAM TEXAS 77456				
Juvenile Disp					
Phone	979-843-5943	Release To			
Juv. In Facility Date - Time			Juv. Out Facility Date - Time		

EMPLOYER DETAILS

Occupation	NA	Employer	UNEMPLOYED
Address			

Release from jail paperwork

Matagorda County Sheriffs Department
Resident Transaction Receipt (Reprint)
Monday, May 15, 2023 @16:24

Officer: EASTMAN Station: 002 Drawer: May 15, 2023 16:23:54
Transaction #: 100594734 Timestamp: May 15, 2023 16:23:54
CTN: Name: THOMPSON, DONALD LYNN
11732 Reference:

Description:
RELEASE OR CLOSEOUT TRANSACTION

Block: Tier: Cell: DOB: Feb 28, 1968
HOLD

Trans Type:	Date:	Amount:	Current Funds:
DEBIT CARD	May 15, 2023	\$ 15.00	\$ 0.00

Inmate Sig _____ Date _____

Arresting Officer Sig _____ Date _____

Towing inventory paperwork

Montgomery County Sheriff's Office
Sheriff Frank "Skipper" Osborne

CFS # 2023-0477
Date: 05/14/23

VEHICLE INVENTORY

NAME: Donald Thompson ADDRESS: 8th Street Markham
(Driver, Owner or Person in Charge)
VEHICLE SEIZED / REMOVED FROM: 107 Ave I Markham TX
VEHICLE TOWED BY: Jackson Towing STORAGE ADDRESS: _____
(Towing Company) (Storage Facility)
VEHICLE INFORMATION
LIC. PLATE: PTZ 7792 STATE: TX YEAR: 04 VIN: 1C3EL65P94N295071
YEAR/MAKE/MODEL: 2004 Chrysler Sebring COLOR: White STYLE: 2-door

(Circle the Appropriate Answers)

AUTHORITY: ☒ Arrest ☐ Abandoned ☐ Stolen ☐ Seizure
CONDITION: ☒ Normal ☐ Stripped ☐ Burned ☐ Wrecked
LICENSE: ☒ Proper ☐ Fictitious ☐ Removed
VIN: ☒ Proper ☐ Fictitious ☐ Removed ☐ Defused

HOLD?: ☒ No ☐ Yes Authorization: _____
(Circle one) (Name and Rank)

EXTRA ACCESSORIES ON VEHICLE: (Valuable, Non-Stock Items. Itemize or Write "NONE")

ACCESSORIES REMOVED PRIOR TO INVENTORY: (Itemize or Write "NONE")

*****SEE BACK OF SHEET FOR ITEMIZED INVENTORY*****

DEPUTY: Gonzales UNIT: 544 SIGNATURE OF DRIVER OF VEHICLE: _____

RECEIPT
"I CERTIFY THAT I, THE UNDERSIGNED, RECEIVED THESE ITEMS DESCRIBED HEREIN THIS VEHICLE INVENTORY FROM
DEPUTY _____ ON _____ AT _____ HRS, WITH THE EXCEPTIONS BELOW:"
(Itemize or Write "NONE")

SIGNATURE OF TOW TRUCK DRIVER: _____

Jackson Towing paperwork

Jackson Services2100 Golden Avenue, Bay City TX 77414
Phone: (979) 244-1831 | Fax:

Call #: 613
Stock #: 14556253
Authorized by: Matagorda Co Sheriff Department
2300 Ave F, Bay City tx 77414
(979) 245-5536
Date/Time Impounded: 5/14/2024 3:00 AM
Driver: Buster Jackson
Driver TOL#: 507
Truck: 218

Impound Invoice

Printed 5/22/2024

Reason for impound: Arrest
VIN Number: 1C3EL65R94N295071
Model: 2004 Chrysler Sebring
License Plate: PTZ792 (TX)
Driveable: Yes
Keys: No
Towed from: 507 Ave F Marsham
Stored at: Jackson Services
2100 Golden Ave, Bay City TX 77414

Itemized Towing Charges Related to the Tow / Tow Charges	Quantity	Price	Line Total
(Towing) Loaded/Hooked Mileage	8	\$5.00	\$40.00
(Towing) Impoundment Fee	1	\$20.64	\$20.64
(Towing) Tow/Hook (After Hours)	1	\$250.00	\$250.00
Vehicle Storage Facility Charges			
(Storage - Storage Fees) Impounds/Storage: Daily Impound Rate	9	\$20.64	\$185.76
(Storage - Notification Fees) Notification Fee	1	\$50.00	\$50.00
Towing Subtotal			\$310.64
Storage - Notification Fees Subtotal			\$50.00
Storage - Storage Fees Subtotal			\$185.76
Subtotal			\$546.40
Taxes			\$17.03
Grand Total			\$563.43
Amount Due:			\$563.43

Jackson Services appreciates your business; if you have any questions regarding this invoice, please contact us at (979) 244-1831.

Signature: _____ Date: _____ You may direct all complaints to Texas
Department of Licensing & Regulation at P.O. Box 12157, Austin TX 78711 or call 800-803-9202 or through the website <http://www.tdlr.texas.gov> or
email to enforcement@tdlr.texas.gov.

OCCUPATION CODE 2308-RIGHTS OF OWNER OR OPERATOR OF A STORED OR BOOTED VEHICLE

The owner or operator of a vehicle which has been removed and stored in a vehicle storage facility without the consent of the owner is entitled to a hearing on whether probable cause existed for the removal of the vehicle pursuant to Sec. 2308.452 of the Texas Occupations Code. Before requirements. The person entitled to this hearing must deliver, within the 14th day after the date the towing company or vehicle storage facility provided to the vehicle owner or operator the information necessary for the vehicle owner or operator to complete this material for the request for hearing, excluding Saturdays, Sundays, and legal holidays. The hearing request must be submitted to the Justice of the Peace from which the motor vehicle was towed. The request must contain: (1) name, address, & telephone number of the owner or operator of the vehicle; (2) the location from which the vehicle was removed or in which the vehicle was booted; (3) the date when the vehicle was removed or booted; (4) the name, address, and telephone number of the person or law enforcement agency that authorized the removal or booting; (5) the name, address, and telephone number of the vehicle storage facility in which the vehicle was placed; (6) the name, address, and telephone number of the towing company that removed the vehicle or of the booting company that installed a boot on the vehicle; (7) a copy of any receipt or notification that the owner or operator received from the towing company, the booting company, or the vehicle storage facility; and (8) the vehicle was removed from or booted in a parking facility. (A) one or more photographs that show the location and text of any sign posted at the facility regarding parking of vehicles; or (B) a statement that no sign regarding parking was posted at the parking facility. The Court may charge a filing fee up to \$20 for a hearing and may award court costs to the prevailing party, reasonable cost of the photographs to a vehicle owner or operator who is the prevailing party, and possible overcharges of towing fees. The hearing request may be filed in any Justice Court in (i) the county from which the vehicle was towed, or (ii) for booted vehicles, the county in which the parking facility is located. The Internet website maintained by the Office of Court Administration of the Texas Judicial System that contains the name, address, and telephone number of each Justice Court in that county is <http://www.texasjudicial.org>.

Jackson Towing released the vehicle for \$500.00 cash

Jackson Services

2100 Golden • Bay City, Texas 77414
979-244-1831 • Mobile 979-240-4681

7902

Texas Department of Licensing and Regulation • TDLR# 006464669C
Vehicle Storage Facility License • VSL# 0646473VSF

Called by <u>MSD</u>		Tow Authorized by	
Date <u>5-14-23</u>	Time	Reason Towed or Stored <u>Arrest</u>	
Customer <u>Virginia Lee Thompson</u>			
Address <u>PO Box 521</u>		Mileage	
City <u>Marathon, TX 77456</u>	Phone	Color <u>White</u>	License # <u>PTZ-7H2</u>
Year <u>2004</u>	Make <u>Chry</u>	Model <u>SLT</u>	
True VIN <u>1C3EL6SR94N295071</u>			
Location Towed From <u>507 Ave I. Marathon</u>		Tow Truck LP# <u>T56-75K</u>	
Towed by <u>Jonathan Muly</u>		Truck # <u>218</u>	
Towed to			
NOTICE: Vehicle Owners Right to Challenge Legality of Tow, Texas Occupations Code, Chapter 2308.			
Reported to Law Enforcement Agency:	Date	Time	To
I, the undersigned do hereby certify that I am legally authorized and entitled to take possession of the vehicle described above and all personal property therein. X <u>[Signature]</u> <u>pd 6/7/23</u> Signed <u>CASH</u> COMPLAINTS MAY BE DIRECTED TO: Texas Dept. Of Licensing & Regulation P. O. Box 12157 Austin, Texas 78711-2157 1-800-803-8200 • www.tdlr.texas.gov/complaints • enforcement@tdlr.texas.gov			
TOWING CHARGES DESCRIPTION			
Accident			
☐ Abandoned ☒ Arrest			
Wrecker Fee <u>8</u> <u>5.00</u> PER MI			<u>40.00</u>
Hook-Up Fee			
Call Out			<u>250.00</u>
In Route			
Roll Back Request			
Extra Labor			
Working Time			
Waiting Time			
Remove Drive Line			
Clean Up			
VEHICLE STORAGE FACILITY CHARGES			
Days @ <u>20</u> a Day Storage	From <u>5/14/23</u> To		
Inventory, Lock, Cover & Secure Impoundment Fee			
☒ MVR Register Date			<u>20.64</u>
Notification Letters			<u>50.00</u>
Storage			
Tax Rate (\$.25%)			
TOTAL CHARGES			<u>\$500.00</u>

Terms: Net 30 Days. ALL APPROVED CHARGE ACCOUNTS ARE DUE AND PAYABLE WITHIN 30 DAYS OF INVOICE DATE. AMOUNTS DUE OVER 30 DAYS ARE PAST DUE AND WILL BE ASSIGNED A LATE PAYMENT FINANCE CHARGE OF 1.00% PER MONTH ON AMOUNT PAST DUE.

Tow hearing

CAUSE NO. 4-23-AH-0061

VIRGINIA L THOMPSON
PLAINTIFF

v.

MATAGORDA COUNTY SHERIFF'S
DEPARTMENT
DEFENDANT

§ IN THE JUSTICE COURT

§

§

§

§

PRECINCT 4

§

§

MATAGORDA COUNTY, TEXAS

NOTICE OF HEARING – VEHICLE TOWED/BOOTED

NOTICE IS HEREBY GIVEN that this case is set for hearing on June 22, 2023 at 10:00 a.m.

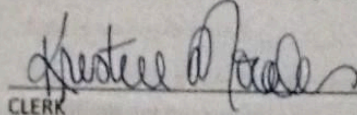
Justice of the Peace, Precinct 4
3rd and Avenue F
Markham, Texas 77456

Ph: 979-843-5601

Email: jp4@co.matagorda.tx.us

The purpose of this hearing is to determine whether probable cause existed to tow or boot the vehicle. A copy of the hearing request is attached.

ISSUED AND SIGNED on June 7, 2023


CLERK

JUSTICE OF THE PEACE, PRECINCT 4
MATAGORDA COUNTY, TEXAS



Request for records

6/20/23 2:24 PM

mat.co.matagorda.tx.us/WorldClient.dll?Session=D4K9DBKWJ8C86&View=Message&Print=Yes&Number=716&FolderID=2

From: "Michaela Riley" <records2@co.matagorda.tx.us>
To: "donniethompson430@gmail.com" <donniethompson430@gmail.com>
Bcc: "Mike Glaspie" <MGlaspie@co.matagorda.tx.us>
Date: 06/15/2023 08:32 AM
Subject: RECORDS REQUEST

Good Morning,

Second Notification (First Notification was sent on June 7th)

In reference to your records request I have no problem not redacting your information out of the reports but they will need to be picked up in person to verify your identity.

Additionally there is a charge to receive body cam footage:

It is \$10 dollars for each recording and a 1 dollar for every minute

3 officers and one dashcam video=\$40

Minutes per video (14.11+14.50+14.11+21.14 =64.26)

Bringing your total to 104.26 for the body cam recordings. I will need to receive payment before I can release the videos to you.

If you have any questions please contact me directly.

Thank you,
Michaela Riley
Records/ID Clerk
Matagorda County Sheriff's Office

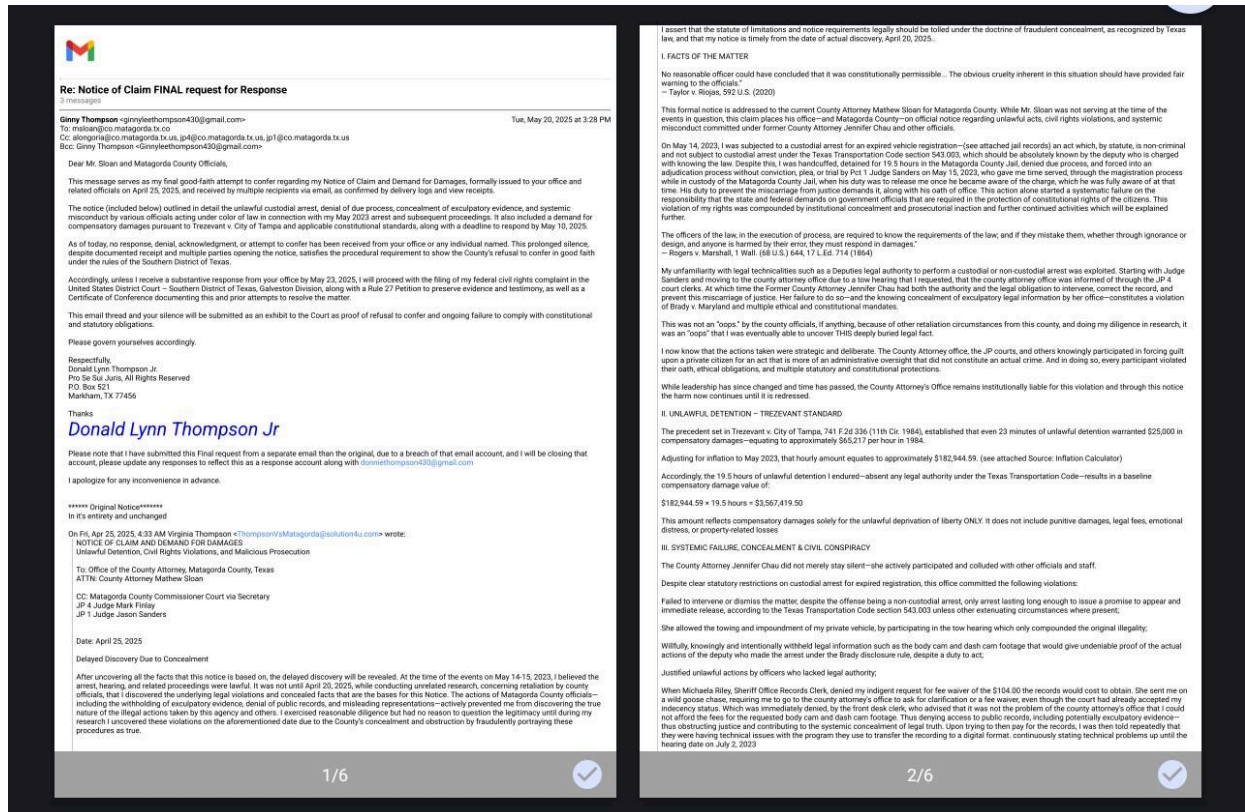
CONFIDENTIALITY NOTICE: This email message, including any attachments, is for the sole use of the intended recipient(s) and may contain confidential and privileged information. Any unauthorized review, use, disclosure or distribution is prohibited. If you are not the intended recipient, please contact the sender by return email and destroy all copies of the original message.

http://mat.co.matagorda.tx.us/WorldClient.dll?Session=D4K9DBKWJ8C86&View=Message&Print=Yes&Number=716&FolderID=2

Prior to filing the federal court case. I gave the county several opportunities to discuss this situation and they answered with silence.

I have sent notifications to the county trying to get resolution to the situation

I sent 3 emails



These failures were not isolated. They reflected a pattern of conduct—coordinated, deliberate, and malicious in effect.

IV. ILLEGAL TOW HEARING & JUDICIAL MISCONDUCT

Following what I thought was a legal arrest, I questioned the towing of my vehicle, because of its location being parked on private property and off the road and the owner of the property advising the arresting deputy that the vehicle was ok to stay because they knew the owner.

So I exercised my legal right to request a tow hearing under Texas law on June 2, 2023 and was scheduled for July 2, 2023. At this hearing—presided over by Judge Mark Finlay (J4)—former County Attorney Jennifer Chau was not only present but actively participated in the proceeding. Given the facts of the custodial arrest, she was under legal obligation to immediately acknowledge that the towing was the direct result of an illegal arrest. Instead, both she and Judge Finlay proceeded with the hearing, giving the appearance of due process while knowingly violating it.

At the beginning, my wife, Virginia L. Thompson, the legal owner of the vehicle, made an oral motion to compel the Sheriff's Office to release dashcam and bodycam footage—evidence essential to determining the lawfulness of the stop and tow. Judge Finlay overruled the motion without justification, despite also being in a position to know that the arrest was unauthorized. By doing so, he demonstrated willful collusion with the County Attorney to conceal the truth and deny us access to exculpatory evidence.

During the hearing, the deputy who made the arrest gave false testimony, which would have been undeniably proven false had the body cam or dash cam footage been provided and not refused. When challenged under questioning, Jennifer Chau repeatedly objected to relevant questions, effectively shielding the deputy from accountability and obstructing the development of the factual record.

Adding insult to injury, Judge Finlay permitted the testimony from a representative from the towing company to testify that he had no personal knowledge of the vehicle's location or the chain of custody. Instead of stopping the hearing and requiring the towing company to provide the actual towing employee to be produced, Judge Finlay said that he had enough information and then ruled that the tow was legal, instructed me about breaking the law by driving a vehicle with an expired registration, telling me the deputy has discretion in determining whether or not to tow, and ruled against me, and closed the case with no option for appeal—despite the absence of any supporting evidence.

This proceeding was not a hearing—it was a coordinated cover-up. It functioned as a rubber stamp to retroactively legitimize an illegal arrest, and every actor involved had the knowledge and legal duty to stop it. Instead, they actively perpetuated it.

Fundamentally making the appearance of a legal court judgment on an unsuspected citizen. Knowing full well going forward on what could have been an accidental oversight, and turned it into a full-blown conspiracy to protect an illegal action by a sheriff deputy.

V. COLLATERAL DAMAGES – EMOTIONAL, FINANCIAL, REPUTATIONAL

The violation of my rights caused substantial and lasting harm, including but not limited to:

Loss of income and employment opportunities during and following the unlawful detention of my person along with the nearly a months long capture of the only vehicle my family has while trying to raise the money to pay for the imposed charges.

Emotional trauma, stress, and public humiliation;

Out of pocket expenses incurred to recover towed property;

Unlawful deprivation and concealment of exculpatory evidence;

A permanent mark in local and possibly state law enforcement databases;

Denial of due process as guaranteed by both the Texas Constitution and the U.S. Constitution;

Additional Damages Claimed: Malicious Prosecution of a Non-Criminal Act

Subjecting me to legal jeopardy and public incarceration over a non-criminal, administrative offense constitutes malicious prosecution. Courts have consistently recognized such conduct as grounds for both compensatory and punitive damages. I hereby assign a preliminary valuation of \$250,000 to this claim, pending full discovery of prosecutorial communications, internal memoranda, and charging decisions. If this claim is not fully respected as to the illegal actions taken knowingly, intentionally and with complete disregard to the duties placed on this government.

The failure to intervene, prevent extended unlawful detention, or correct false or misleading records by Matagorda County officials—ranging from law enforcement to the judiciary—constitutes actionable misconduct and potential obstruction of justice.

My total claim, including non-economic and punitive damages, results would be well over \$4.6 Million or more depending on the jury after hearing the individuals involved who are charged with protecting the rights of the citizens that have elected them to those positions have not only NOT done what is in their oath, but to work together to completely shatter the trust of the people who now know that they too could be subjected to this situation.

VI. REMEDY DEMAND

Although former County Attorney Jennifer Chau is no longer in office as the county attorney, her misconduct—and the misconduct of Pct 4 Judge Mark Finlay, Pct 1 Judge Jason Sanders and others acting in their official capacity—remains the legal responsibility of the County Attorney's Office as the absolute line of protection based on the facts of all parties involved in this situation.

As the current County Attorney, Matthew Sloan, you now have the opportunity to do what your predecessor did not: correct a known wrong, disclose the full truth, and resolve this matter without further harm.

If no good-faith response is received within fourteen (14) days, May 10, 2025, I will aggressively pursue and initiate all available and formal legal proceedings along with requirements for criminal charges on every single person who had a legal obligation to halt enforcement and choose to knowingly and intentionally continue prosecution.

VII. FINAL NOTICE

3/6



I did not consent to being a target of an unlawful and deceptive system. I will not be silenced or ignored.

This is your opportunity to honor the responsibilities of your office, protect the public trust, and comply with state and federal law.

I expect payment of no less than \$334,748.50 by the May 10, 2025 deadline for compensatory damages, set by court precedent. I am open to negotiating the remaining balance of non-economic and punitive damages a jury would be instructed to consider.

You are also on notice that ANY Retaliation in ANY form by ANY department in the Matagorda County government will trigger immediate legal and public escalation until this has been corrected and fully completed. Along with any inaction taken by this office will be used as evidence of the continuing of these illegal actions that have already been established.

Due to every single step of this situation being concealed that the entire scheme was not corrected by the people who are trusted to conduct themselves in the best interest of the people they serve allowed for this to go unchecked until this information was found while doing research on a different situation that lead to this discovery of this horrible injustice that had been portrayed as legal against me.

It is not up to a citizen to know or even be able to provide the officials who are trusted with the law and how it is to be applied to direct the officials on how to proceed. It is solely the responsibility of the government to regulate the officials to safeguard the citizens. In summary, the legal system acknowledges that citizens cannot be expected to navigate or challenge complex legal procedures during encounters with government officials.

When officials become aware that they have inadvertently or unlawfully overstepped their authority, they have a legal and ethical duty to immediately correct the error—not to conceal it or shield one another. Continuing the misconduct or engaging in a cover-up transforms a mistake into a willful criminal act against an innocent party.

I'm constantly forced to question whether I'm being treated fairly by different agencies of this county, only to repeatedly discover that government officials are not following the rules and have subjected me and my family to countless unconstitutional sanctions, all while enduring relentless harassment and unlawful actions taken by various agencies within this county.

It's even more deeply disheartening when I realized that I have once again been unjustly manipulated and wronged by those entrusted with upholding and protecting the Constitution—especially since this is a completely unrelated situation that I am usually dealing with when it comes to unfair treatment by the officials of this county.

Just as in *Thompson v. Clark*, 596 U.S. (2022), Matagorda County's officials recklessly disregarded the truth by concealing the unlawfulness of my arrest and prosecution. Their coordinated efforts to deny access to exculpatory evidence and manipulate judicial proceedings reflect a policy of deliberate indifference to constitutional rights, rendering the county itself liable under *Monell*.

I expect nothing less than for this office to act accordingly and legally.

With all Constitutional and Federal rights reserved
Sincerely and Respectfully,

/s/ Virginia L. Thompson

Virginia L. Thompson on behalf of my husband
Donald Lynn Thompson, Jr.
P.O. Box 521
Marlham, TX 77456

Cc: Commissioner Court through Alexandria Longoria, Secretary
JP 4 Judge Mark Finlay
JP 1 Judge Jason Sanders

Attached: Jail Records
Infraction Calculator

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: ginyreethompson430@gmail.com

Tue, May 20, 2025 at 3:28 PM



Address not found

Your message wasn't delivered to msloan@co.matagorda.tx.co because the domain co.matagorda.tx.co couldn't be found. Check for typos or unnecessary spaces and try again.

[LEARN MORE](#)

4/6



The response was:

DNS Error: DNS type "mx" lookup of co.matagorda.tx.co responded with code NXDOMAIN Domain name not found: co.matagorda.tx.co. For more information, go to <https://support.google.com/mail/1/cp3a8a8c3f8a8a8a>.

Giny Thompson <ginyreethompson430@gmail.com>

Thu, May 22, 2025 at 7:49 PM

To: msloan@co.matagorda.tx.us
Cc: alongoria@co.matagorda.tx.us, g1@co.matagorda.tx.us, p4@co.matagorda.tx.us
Bcc: donalwthompson430@gmail.com, <donalwthompson430@gmail.com>

May 23, 2025

TO:
Matthew Sloan
Office of the County Attorney
Matagorda County, Texas
msloan@co.matagorda.tx.us

CC:
Commissioners Court via Alexandria Longoria
JP 4 Judge Mark Finlay
JP 1 Judge Jason Sanders

Re: Final Pre-Litigation Offer for Resolution – Civil Rights Violations (May 2023 Incident)

Dear Mr. Sloan,

This letter serves as my one and only proposal to the ignored written attempts to resolve this matter in good faith before initiating formal federal litigation. Despite previous notices and multiple documented attempts to confer, no response has been provided by your office or any other the County officials. Concerning this situation, I have been met with defiant silence, which only leads me to believe, that your office is not taking my situation seriously and are purposefully and willingly ignoring any requests that I am trying to be reasonable about.

As you have already been made aware of, this claim arises from a documented series of constitutional violations beginning with an unlawful custodial arrest for an administrative infraction, and continuing through the withholding of exculpatory evidence, denial of due process, and culture judicial proceedings.

I have all the documented proof that establishes compensation according to the court precedents set and all well within the legal standards established under:

Trevaunt v. City of Tampa, 741 F.2d 336 (11th Cir. 1984) – establishing precedent for substantial compensatory damages in unlawful detention cases;

Brady v. Maryland, 373 U.S. 83 (1963) – underscoring the constitutional duty to disclose exculpatory evidence;

Thompson v. Clark, 596 U.S. 63 (2022) – reaffirming malicious prosecution standards;

and *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658 (1978) – confirming institutional liability where misconduct stems from official policy or systemic failure.

I acknowledge that, Your office, is under new leadership, however that means that you now bear the institutional responsibility for remedying these wrongs.

The continued silence and failure to engage in meaningful dialogue only further supports my claim of deliberate indifference and bad faith refusal to confer, as defined by Rule 26(c) and the requirements of the Southern District of Texas. For which I will be filing my Federal civil rights in. Which with the behavior and systemic patterns of the officials in this county has given the Federal courts jurisdiction. And I intend to take full advantage of their services.

I am not trying to "bet" the county, I'm just trying to correct the wrong that has been inflicted upon me. And to show my willingness to settle this matter, I'm willing to propose the following one time offer before I take legal action:

Settlement Proposal – Final Terms for Resolution

In the interest of avoiding costly and protracted litigation—both for the County and myself—I am willing to resolve this matter under the following terms:

1. Monetary Compensation:

A payment of \$3,000,000 (Three Million USD), reflecting a significant reduction from the calculated \$3,56M compensatory claim, and a complete waiver of all punitive, emotional, and civil rights damages that would otherwise be pursued at trial.

2. Record Relief:

Full expungement of the unlawful custodial arrest and all associated administrative notations.

3. Written Acknowledgment:

A signed statement from your office acknowledging that the events surrounding my May 2023 detention and subsequent hearing failed to adhere to constitutional safeguards.

4. Non-Disparagement Clause:

5/6



I agree not to publicly discuss, publish, or promote this matter after settlement, including refraining from speaking negatively about Matagorda County or its officials concerning this matter—pending the full and good-faith execution of this agreement.

If I do not receive a written acceptance or reasonable counteroffer by 5:00 PM on May 27, 2025, You will have left me with no other choice but to immediately file a federal complaint in the U.S. District Court – Southern District of Texas. I will be including requests for full discovery, injunctive relief, full compensation and all records associated with this incident.

Along with everything that a jury would be obligated to confirm and award for damages, I will also be documenting this publicly to safeguard myself and my family from further retaliation, which this county has been very vigilant to enforce unnecessary and other malicious prosecution endeavors against my property, family, livelihood and home.

I am prepared to immediately involve the media if any department, or any employee of Matagorda County tries to interfere, by way of retaliation, while this case is pending, or any other time for that matter, so I would suggest you and Matagorda handle this accordingly.

I urge you to consider this a final chance to resolve this matter with dignity and discretion.

I am not seeking vengeance, I only want justice, clarity, and closure. And as part of the population who has elected you to the position of upholding your oath to the members of this county, it would be in the best interest for your office to stop turning a blind eye and actually fulfill your duty to intervene and prevent further damage being inflicted.

Again this is the one and only opportunity for this to remain out of the courts and out of the public, I look forward to hearing from your office no later than the 27th.

Respectfully,

Donald Lynn Thompson, Jr.
Pro Se, Sul Jurs
P.O. Box 521
Marlham, TX 77456

(Signed best Notepad)

6/6



To which I have heard nothing but silence.

So I filled a case in Federal Court.